

Shreya Singhal Vs. Union of India

Case Study

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Introduction

Shreya Singhal v. Union of India (2015) is a landmark case decided by the **Supreme Court of India** concerning the **Right to Freedom of Speech and Expression on the Internet**. The case mainly challenged the constitutional validity of **Section 66A of the Information Technology Act, 2000**, which provided punishment for sending certain online messages that were considered offensive, annoying, inconvenient, or harmful. The provision was widely criticized because its terms were unclear and could be misused to restrict people's genuine opinions and expressions on social media and other online platforms. The case became significant because it examined whether such restrictions were reasonable and whether they violated the fundamental right guaranteed under **Article 19(1)(a)** of the Indian Constitution. The Supreme Court also considered the importance of protecting freedom of expression in the rapidly developing digital environment. The judgment became an important milestone in protecting the rights of Internet users and establishing that **freedom of speech applies not only to traditional forms of communication but also to digital and online platforms**.

Facts of the Case

In **2012**, an incident took place in Maharashtra that brought attention to the misuse of **Section 66A of the Information Technology Act, 2000**. Two young women, **Shaheen Dhada and Rinu Srinivasan**, became involved in a legal controversy after a Facebook post and its subsequent "like" regarding the shutdown of Mumbai following the death of a political leader. The Facebook post expressed an opinion about the shutdown, while the second woman had only liked the post. However, both women were arrested under **Section 66A** of the Information Technology Act. The arrests created widespread criticism because many people felt that the law was being used to restrict individuals from expressing their opinions on social media. The incident raised serious questions about whether people could freely express their views on the Internet without fear of legal action. It also showed that the broad and unclear wording of Section 66A could potentially be misused by authorities. Following this incident, **Shreya Singhal**, a law student, approached the **Supreme Court of India** and challenged the constitutional validity of Section 66A. She argued that the provision contained vague and unclear terms such as **"offensive", "annoying", and "inconvenient"**. According to her, these words did not clearly define what type of online communication would be considered an offence. Therefore, the provision could

allow authorities to take action against individuals simply for expressing their genuine opinions, criticism, or views on social media and other online platforms. Shreya Singhal argued that such a provision had the potential to interfere with the **fundamental right to freedom of speech and expression guaranteed under Article 19(1)(a)** of the Indian Constitution. The case therefore became an important challenge to the government's power to regulate online communication and ultimately raised the question of how freedom of speech should be protected in the growing digital environment.

Legal Issues

The Supreme Court considered several important legal issues in this case. The main issue was whether **Section 66A of the Information Technology Act, 2000 violated Article 19(1)(a)** of the Constitution, which guarantees the fundamental right to freedom of speech and expression. The Court had to decide whether the restrictions imposed by Section 66A were reasonable and permitted under **Article 19(2)**. Another important issue was whether the vague terms used in Section 66A, such as **"offensive", "annoying", and "inconvenient"**, gave excessive power to law enforcement authorities. The Court also examined whether the provision was **arbitrary and violated Article 14**, which guarantees equality before the law. Overall, the case focused on balancing **freedom of speech with the government's power to regulate online communication**.

Judgement

On **24 March 2015**, the Supreme Court of India delivered a **unanimous judgment** and declared **Section 66A of the Information Technology Act, 2000 unconstitutional**. The Court completely struck down the provision because it imposed an unreasonable restriction on the fundamental **Right to Freedom of Speech and Expression** guaranteed under Article 19(1)(a) of the Constitution. The Court observed that the words used in Section 66A, such as **"offensive", "annoying", and "inconvenient"**, were vague and subjective. They did not clearly define what type of online communication could result in punishment, which could lead to misuse of the law and create fear among people expressing their opinions. The Court also explained the difference between **discussion, advocacy and incitement**. It held that discussion and advocacy, even when unpopular or critical, are protected forms of speech. However, restrictions may be imposed when speech reaches the level of **incitement** and falls within the

grounds permitted under Article 19(2). Therefore, the Court concluded that Section 66A could not be justified as a reasonable restriction on freedom of speech and struck it down completely.

Legal Principles

The **Shreya Singhal v. Union of India** case established several important legal principles relating to the **Right to Freedom of Speech and Expression**. The Court made it clear that freedom of speech is not limited to traditional forms of communication and also extends to **communication through the Internet, social media and other digital platforms**. The Court emphasized that laws restricting fundamental rights must be **clear, reasonable and precise**. A person should be able to understand what conduct is prohibited by law. The Court also observed that vague laws can create a "**chilling effect**", where people may avoid expressing their genuine opinions because they fear legal action. This can indirectly affect the freedom of speech of citizens. Another important principle established by the Court was the distinction between **discussion, advocacy and incitement**. Discussion and advocacy, even when they are unpopular or critical, are protected forms of speech. However, restrictions can be imposed when speech reaches the level of incitement and falls within the constitutionally permitted grounds under **Article 19(2)**. Thus, the judgment strengthened the protection of free expression in the digital environment.

Business Relevance

The judgment has important relevance to businesses because modern companies depend heavily on **social media, websites, online advertising, e-commerce platforms and digital communication**. Businesses use these platforms to promote their products, communicate with customers, receive feedback and build their brand image. Employees and customers also express their opinions about companies through online platforms. The case highlights the importance of protecting freedom of expression while maintaining **responsible digital communication**. Businesses should therefore develop clear and reasonable social media and communication policies for their employees and customers. These policies should not unnecessarily restrict legitimate opinions or criticism. The judgment is especially relevant to businesses operating **social media platforms, digital services, e-commerce websites and technology-based businesses**. It also reminds businesses to understand and follow applicable

laws while managing online content. Maintaining a balance between business interests, customer rights and freedom of expression is important in the digital business environment.

Conclusion

Shreya Singhal v. Union of India (2015) is an important landmark case that strengthened the protection of the **Right to Freedom of Speech and Expression in the digital era**. By striking down Section 66A of the Information Technology Act, the Supreme Court protected individuals from vague, unclear and unreasonable restrictions on their online communication. The judgment showed that the development of technology and the growth of social media cannot be used as a reason to unnecessarily limit fundamental rights. It also emphasized that laws regulating the Internet must be reasonable, clear and consistent with the Constitution. The case continues to be significant for **Internet users, businesses, digital platforms and the government**, as it demonstrates the need to maintain a proper balance between **digital regulation, business interests, freedom of expression and constitutional rights**.